PATENT INFORMATION DOCUMENT

LEXTRIA RESEARCH

STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION

STEP 1
Filling Invention Disclosure (IDF) Form by the inventor

STEP 2
Call to discuss the invention with Team Lextria to decide filing of PS or CS

STEP 3
Drafting of the invention by Team Lextria

STEP 4
Confirmation of the draft and confirmation of the inventor details by the Inventors

STEP 5
Filing of the Application and Communication of Application Number with Ack and Form 1 for Signature

STEP 6
Providing Signed Form 1 within 3 months and providing evidence within 12 months in case of PS

PS - Provisional Specification
CS - Complete Specification

*Details mentioned here are for illustration purpose only

TESTS FOR SELECTING A PATENT APPLICATION

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1

Whether the idea has been tested for feasibility ?

No, need some time for R&D

File provisional and get 12 months time

Yes, have clarity over the product that goes into market

File complete specification

2

Complete specification already filed

Observed just an improvement

File patent of addition

Observed significant change

Convert into provisional application and later follow-up with a complete specification

Observed a different point of novelty

File divisional application

3

Product is not finalised but multiple inventive steps are observed

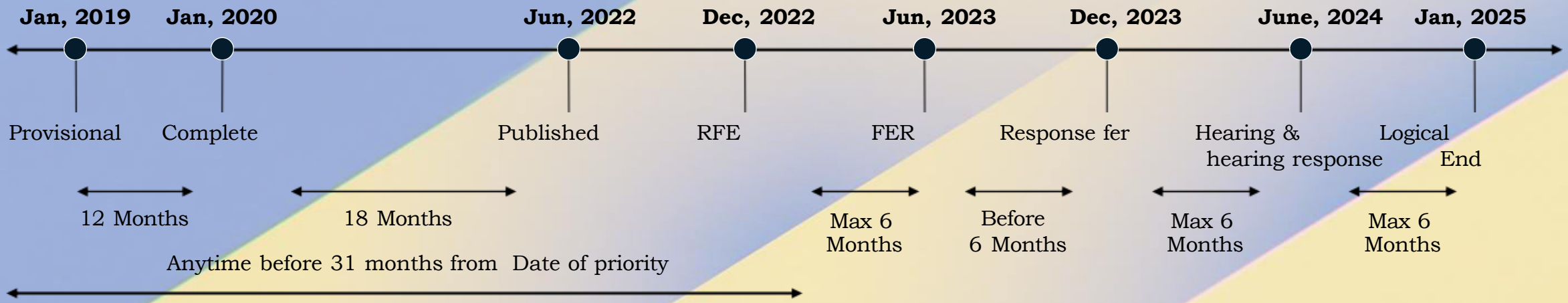
File provisional specification to secure priority to each of such steps

Follow-up with a complete specification before 12 months from data of filing first provisional specification

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PATENT CYCLE - EXEMPLARY SCENARIO:

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Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to paid before 31 months from date of priority.
3. FER: First Exanimation Report shall be issued anytime before 6 months if REF is already filed.
4. Early publication request gets the application published as soon as possible.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expiated examination have stipulated govt. fees as discussed in the Schedule of Fees

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SOME Keywords

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APPLICANT	INVENTOR
Applicant may be a Legal person or a natural person	Inventor should always be a natural person
PROVISIONAL SPECIFICATION	**COMPLETE SPECIFICATION**
Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure	Complete specification is filed with best possible information and evidance of validation to secure grant
First Examination Report (FER)	**HEARING**
It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing	It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage

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SOME FAQs

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Sl. No	QN	ANS
1	What would happen if complete specification is not filed after provisional specification?	The Application would be abandoned, the priority would be lost. However, it shall not affect novelty so it can be refiled.
2	Can time to file complete specification be extended ?	Yes, it can be extended upto 6 month with fees and with lose of priority.
3	How much time it might take for the patent to be published and granted ?	It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1 month untill then the Application is confidantial. It might take about 12 to 30 months for the patent to be granted.
4	Is it compulsory for to do a prototype ?	As per patent act, its important to provide best method of working and evidance of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity.

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SCHEDULE OF FEES – PATENT AND DESIGNS

1. PATENT APPLICATION FILING AND CONSULTANCY FEE:

Service	Item	Official Fees	Service Fees	Total Fees
Patentability Search	Non-Paid Databases	0	No fee	No fee
	Search with a detailed report	0	INR 12000	INR 12000
Application for patent	With Provisional Specification (Natural person/ educational institute)	INR 1600	INR 12000	INR 13600
	With Provisional Specification (Large Entity)	INR 8000	INR 12000	INR 20000
	With Complete Specification (Natural person/ educational institute)	INR 1600	INR 33400	INR 35000
	With Complete Specification (Large Entity)	INR 8000	INR 33400	INR 41400
	Complete specification after provisional (Natural person / educational institute, small and large entity)	0	INR 23000	INR 23000
Request for early	Form 9 (Natural person/ educational institute)	INR 2500	INR 2000	INR 4500

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publication	Form 9 (Large Entity)	INR 12500	INR 2000	INR 14500
Request for examination	Form 18 (Natural person/ educational institute)	INR 4000	INR 2000	INR 6000
	Form 18 (Large Entity)	INR 20000	INR 2000	INR 20000
Request for express examination	Form 18 A (Natural person)	INR 8000	INR 2000	INR 8000
	Form 18 A (Small Entity/ startup)	INR 25000	INR 2000	INR 25000
	Form 18 A (Large Entity)	INR 60000	INR 2000	INR 60000

Service	Item	Official Fees	Service Fees	Total Fees
Reply to First Examination Report	Drafting and Filing	0	INR 25000	INR 25000
Hearing Before Controller	Through Video Conferencing	0	INR 8000	INR 8000
Communicating final written Submission		0	INR 25000	INR 25000
Repeat Hearings	Through Video Conferencing and submitting Written Submission	0	INR 10000	INR 10000
Petitions	Under Rule 137, 138, or 6(6) for natural person / educational institution	INR 1600	INR 2000	INR 3600
Petitions	Under Rule 137, 138, or 6(6) for large entity	INR 8000	INR 2000	INR 10000
Affidavit to be provided after	Under Section 77 or 79 of the Act	0	INR 5000	INR 5000

hearing or any stage in the process (if needed)				
Addition of Inventors	Form 8 for natural person / educational institution	INR 800	INR 2000	INR 2800
Addition of Inventors	Form 8 for natural large entity / other than natural person	INR 4000	INR 2000	INR 6000
Addition/Change of Applicants	Form 6 and Assignment deed	INR 4000	INR 8000	INR 12000

Industrial Design Registration	Preparation of Forms, Representation Sheets, FER Responses, and Hearing	INR 4000	INR 10000	INR 14000

- Additional 18% GST applicable on professional fee
- If both Form 9 and Form 18 are filed together there will be a concession of INR 2000 on the professional fees
- Additional government fee shall be payable if instructed by the applicant for performing any formality at the patent office apart from forms mentioned or if directed by the patent office during the examination.
- If permission from the NBA or any other separate official compliances is required, fee for the same shall be quoted separately.
- Stamp paper, notary expenses, and courier charges will be applicable from case-to-case basis.
- A discount of 5% to 10% shall be provided on serveries rendered in the First

section of the Schedule.

- In case of patent illustrations, a separate fees of INR. 500/hour is applicable
- For bio-technology and medical devices inventions an additional fee of INR. 1000/hour shall be charged if the project requires more than 40 hours of drafting.

Best Regards,
Adv. Pranav Bhat
Chief IP Strategist and Managing Partner,
An Astraea Innovative Solutions,
Manipal, Karnataka

TRADEMARK INFORMATION DOCUMENT

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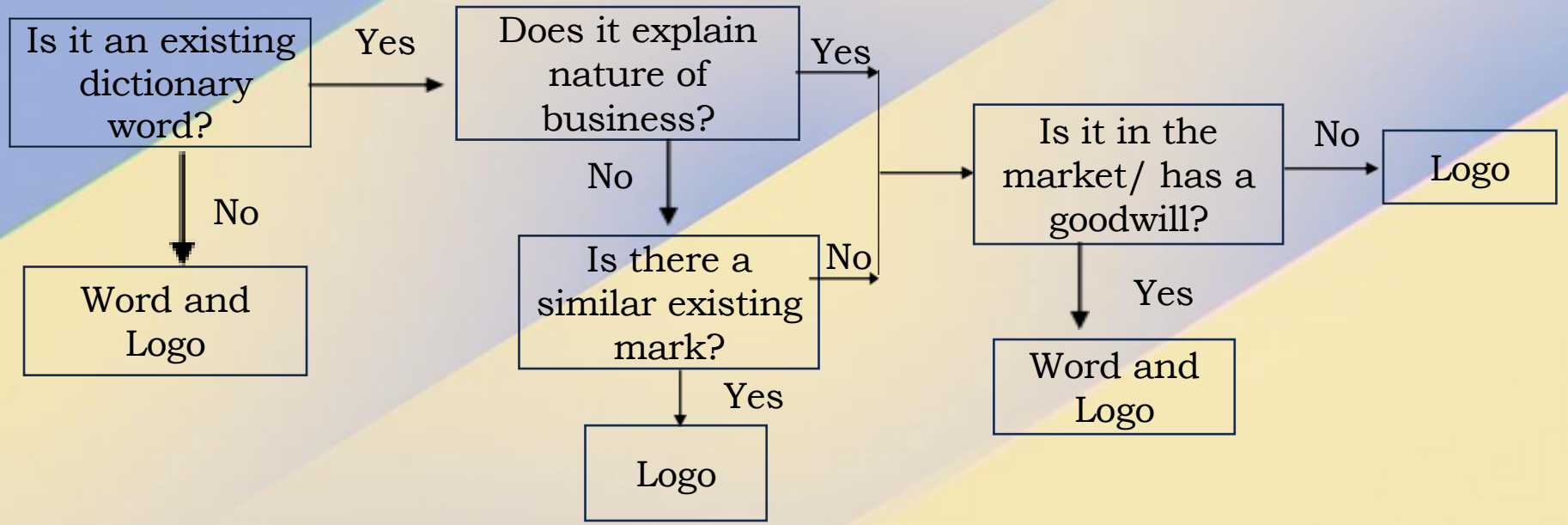
STEPS FOLLOWED BY LEXTRIA RESEARCH TO FILE A TRADEMARK APPLICATION

STEP 1	STEP 2	STEP 3	STEP 4	STEP 5	STEP 6
Receiving the checklist from the team Lextria Research	Executing a Trademark Search and providing a Report (if needed) by the team Lextria Research.	Complying with the checklist and providing evidence of use of the mark if any by the Applicant	Executing the shared Power of Attorney and affidavit (if any) by the Applicant	Filing the mark by team Lextria and sharing the acknowledgement	The mark is subjected for examination and team Lextria Research shall keep the Applicant posted.

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CHECKLIST AND TESTS FOR SELECTING A TRADEMARK

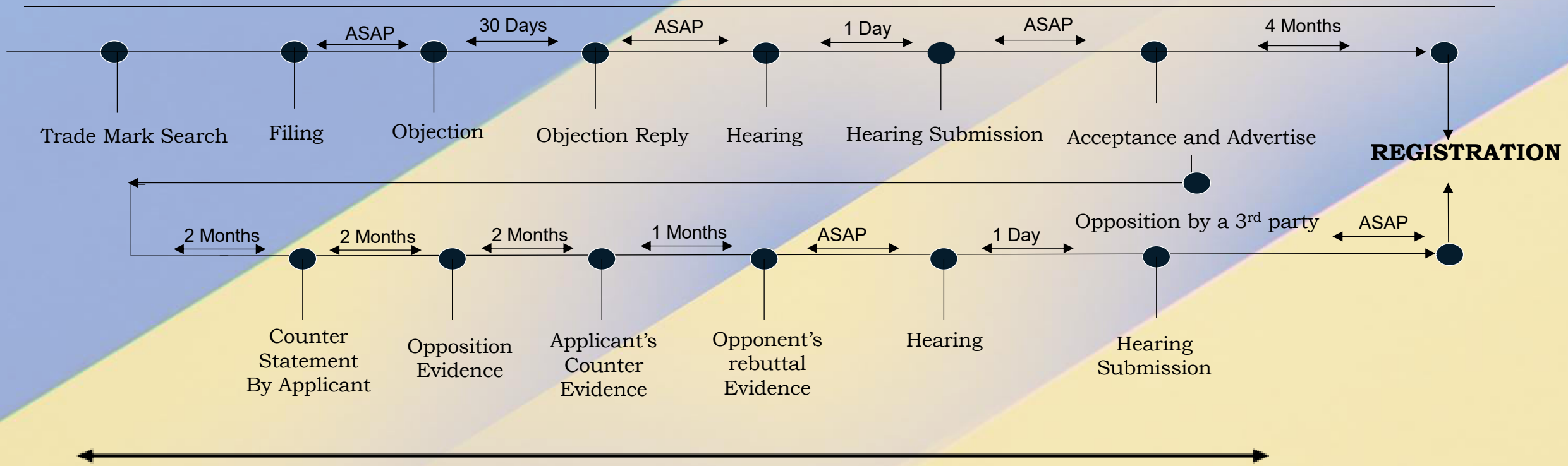
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TRADEMARK CYCLE - EXEMPLARY SCENARIO:

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1. In case of requirement of expedited examination, relevant fee shall be paid to speed up the process
2. 3rd party Oposition can be filed by anyone
3. Trademark search includes search on the Trademark portal provided by the IPATO

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SOME Keywords

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WORD MARK	DEVICE MARK
Work mark gives protection to arrangement of letters	Device mark or logo mark gives protection to the graphical representation of the mark.
Objection	**Opposition**
Objection is by the TM registry and the Applicant has to file a response within 1 month	Opposition is by the 3rd party, the Applicant has to follow the process or the Applicant based on recomendation can file oppsition to similar advertised marks

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FAQs

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Qn	Ans
Does every case have objection ?	Need not be, it may or may not come.
How much time it might take to issue a hearing ?	Timeline is not defined, the Applicant may expedite.
Which mark gets granted easily ?	It depends on the simialr marks, in pratice usually device marks are granted faster.
How to protect packaging ?	Trade dress registration is done to protect packaging

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SCHEDULE OF FEES – TRADEMARK

Service	Item	Official Fee	Professional Fee	Total Fee
Trademark Search	Trademark search with result		10000	10000
Trademark filing	Trademark filing at TMO (Startup/individual)	4500	5000	9500
	Trademark filing at TMO (Startup/individual)	9000	5000	14000
Trademark prosecution	Filing response to objection	800	4000	4800
	Attending objection hearing	800	6000	6800
	Filing written submission	0	10000	10000

SCHEDULE OF FEES – COPYRIGHT

Service	Item	Official Fee	Professional Fee	Total Fee
Copyright Filing	Copyright filing at Copyright office	500	8000	8500
Copyright prosecution	Filing response to objection	800	6000	6800
	Attending objection hearing	800	8000	8800
	Filing written submission	0	10000	10000

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- Additional 18% GST applicable on professional fee
- Additional government fee shall be payable if instructed by the applicant for performing any formality at the Trademark office apart from forms mentioned or if directed by the Trademark office during the examination.
- Stamp paper, notary expenses, and courier charges will be applicable from case-to-case basis.
- In case of Trademark illustrations, a separate fees of INR. 500/hour is applicable
- **If the application is granted in the initial stages, payment of the later stages need not be done.**

Checklist for filing of Trademark: -

~ Kindly provide whether the Applicant is a Company or an Individual?

~ Kindly provide whether the trademark is for a particular product or for the Brand/company?

~ Whether the filing is for a New Trademark? Or for a Trademark already in use

~ If it is already in use; Proof of Prior Usage for Every year from the date of commencement is required

~ Power of Attorney is required in any case

Documents Required:

In case of an Individual; -

1. Name, Address, Email ID and Phone Number of Applicant
2. Trade Mark: [Logo or Word]
3. Does the word or logo have a meaning in any language other than English? If yes then kindly provide the same.
4. Aadhar Card and Pan Card of the Applicant

In case of a Company/Firm/LLP/Startup/MSME: -

1. Name, Address, category of Applicant (company)
2. Resolution of Board of director's (containing sign, seal, Director's number of all the director's) [format will be provided]
3. Name, Mobile, Email of the director who has been authorized by the board's resolution and his Aadhar and PAN card
4. Certificate of incorporation (in case of incorporated company)
5. In case of MSME (certificate)

Checklist for filing of Copyright:

Who is the Applicant? (Company or Individual)

- Is the author a different person from the applicant or are both the same person?
- In cases involving multiple authors and/or applicants, who has the right to assign the

copyright and to grant licenses? Please outline the extent of rights held by each author, including particulars of any assignments and licenses.(E.g. Only Author/Only Applicant/Both Author & Applicant)

- Whether the work is published? If yes, then provide details of the publishers such as Name, Phone number, address, Nationality.
- Author's details such as Name, Phone number, address, Nationality.
- Applicant's details such as Name, Phone number, address, Nationality (Not required if both applicant and author are the same person.)
- Title and brief description of the work.

List of documents Required:

- 3 copies of the work in case of Hard copy or 1 copy of work if it is a soft copy
- Aadhar Card of the Author
- Proof of Existence incase of company for E.g. Startup/MSME certificate, Incorporation or Firm registration certificate, etc.

Regards,
Adv. Pranav Bhat

Best Regards,
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Chief IP Strategist,
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